

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****JOHN MOHAMMED,****Plaintiff,****-against-****THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and NEW YORK CITY
POLICE OFFICER KYLE REISS, Individually and as a
New York City Police Officer,****Defendants.****SUMMONS****Index No.****Plaintiff designates New
York County as the place of
trial.****The basis of venue is:
Accident Location****Accident Occurred at:
FDR Drive and 15th Street
New York, New York****New York County****TO THE DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

**Dated: Mineola, New York
February 17, 2020**

**SANDERS, SANDERS, BLOCK, WOYCIK,
VIENER & GROSSMAN, P. C.**


**MICHAEL VILLECK
SANDERS, SANDERS, BLOCK, WOYCIK,
VIENER & GROSSMAN, P. C.
Attorneys for Plaintiff
JOHN MOHAMMED
100 Herricks Road
Mineola, New York 11501**

(516) 741-5252

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10007

NEW YORK CITY POLICE OFFICER KYLE REISS
15 Robinson Avenue
Medford, NY 11763

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

-----X
JOHN MOHAMMED,

Plaintiff,**VERIFIED COMPLAINT**

Index No.

-against-**THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and NEW YORK CITY
POLICE OFFICER KYLE REISS, Individually and as a
New York City Police Officer,****Defendants.**

-----X
**Plaintiff, JOHN MOHAMMED, by his attorneys, SANDERS, SANDERS,
BLOCK, WOYCIK, VIENER & GROSSMAN, P.C., as and for his Verified Complaint,
herein respectfully alleges, upon information and belief, as follows:**

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOHN MOHAMMED: 42 U.S.C. section 1983, excessive
force, false arrest and violation of plaintiff's civil and constitutional rights**

**FIRST: This is an action for damages sustained by a citizen of the United States
of America against THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT and NEW YORK CITY POLICE OFFICER KYLE REISS,
Individually and as a New York City Police Officer, and Officers of THE CITY OF
NEW YORK who violated plaintiffs' Federal and State Constitutional and Civil rights,
including but not limited to the First, Fourth, Fifth and Fourteenth Amendments to the
United States Constitution, who unlawfully assaulted plaintiff, and who acted
negligently as Officers employed by THE CITY OF NEW YORK, which are sued as a
person under 42 U.S.C section 1983.**

SECOND: This action is brought pursuant to 42 U.S.C. section 1983 and the First, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and arising under the law and statutes of the State of New York, including but not limited to New York Civil Rights Law Section 40-c.

THIRD: That at all the times hereinafter mentioned, the plaintiff, JOHN MOHAMMED, was and still is a Citizen of the United States and a resident of the County of Queens, City and State of New York.

FOURTH: At all times relevant hereto, defendant, Officer KYLE REISS, Individually and as a New York City Police Officer, was assigned to THE NEW YORK CITY POLICE DEPARTMENT as an Officer employed by THE CITY OF NEW YORK. At all relevant times, he was acting in such capacity as the agent, servant, and/or employee of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and was acting under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and THE CITY OF NEW YORK, and under the authority of their office as an Officer of THE CITY OF NEW YORK and of the State of New York. He is sued individually and in his official capacity.

FIFTH: At all times relevant hereto, defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were responsible for the training, supervision, and conduct of the defendants herein. It was also responsible by law for enforcing the regulations of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and for ensuring that THE CITY OF NEW YORK's personnel obey the laws of the City and State of New York and of the United States.

SIXTH: That at all times herein mentioned, the defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly existing under and by virtue of the laws of the State of New York, and at all relevant times, it employed the defendants named herein.

SEVENTH: That at all times herein mentioned, the defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, was a municipal corporation duly existing under and by virtue of the laws of the State of New York, and at all relevant times, it employed the defendants named herein.

EIGHTH: That at all times herein mentioned, the defendant, **THE CITY OF NEW YORK**, was a corporation doing business in the State of New York.

NINTH: That at all times herein mentioned, the defendant, **THE NEW YORK CITY POLICE DEPARTMENT**, was a corporation doing business in the State of New York.

TENTH: Each and all of the acts of defendants alleged herein were done by defendants, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs, and usages of **THE CITY OF NEW YORK** and the State of New York, and under the authority of their office as Officers for **THE CITY OF NEW YORK**.

ELEVENTH: On or about the 28th day of March, 2019, and within ninety (90) days following the occurrence out of which the claim of the plaintiff arose, the plaintiff served a Notice of Claim against the defendants, in writing sworn to by said plaintiff, containing all such information as pertained to the happening of the accident complained herein, to be served upon the defendant.

TWELFTH: That this action is commenced within one year and ninety days after the cause of action arose.

THIRTEENTH: That more than (30) days have elapsed since the aforesaid Notice of Claim was served on the defendants.

FOURTEENTH: That the defendants were negligent and have refused and neglected to settle, adjust or pay said claim.

FIFTEENTH: That all conditions and requirements precedent to the commencement of this action have been complied with.

SIXTEENTH: That the oral examination of the plaintiff has been conducted and/or not scheduled in compliance with section 50-h of the General Municipal Law.

SEVENTEENTH: That this action falls within one or more of the exceptions set forth in CPLR 1602.

EIGHTEENTH: That pursuant to CPLR section 1602, the defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, by reason of the fact that defendants, their agents, servants and/or employees, owed the plaintiff a non-delegable duty of care; that said defendants acted with reckless disregard for the safety of the plaintiff and others; that the conduct of the defendants was intentional; that the defendants are vicariously liable for the negligent acts and omissions of others, including their agents, servants and/or employees, who caused or contributed to plaintiff's damages; and that defendants acted knowingly or intentionally, and in concert, to cause the acts or omissions which are the proximate cause of plaintiffs' injuries.

NINETEENTH: That at all times herein mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, operated a

department, specifically **THE NEW YORK CITY POLICE DEPARTMENT**, as part of and in conjunction with its municipal function.

TWENTIETH: That at all times herein mentioned, the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees, maintained said department, specifically **THE NEW YORK CITY POLICE DEPARTMENT**.

TWENTY-FIRST: That at all times herein mentioned, the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees, managed said department, specifically **THE NEW YORK CITY POLICE DEPARTMENT**.

TWENTY-SECOND: That at all times herein mentioned, the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees controlled said department, specifically **THE NEW YORK CITY POLICE DEPARTMENT**.

TWENTY-THIRD: That at all times herein mentioned, the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees, employed officers to work as representatives and employees of **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**.

TWENTY-FOURTH: That at all times herein mentioned, the defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, employed the defendant Officer **KYLE REISS**, to work as a **THE CITY OF NEW YORK**, and **THE NEW YORK CITY POLICE DEPARTMENT** representative, officer and employee.

TWENTY-FIFTH: That at all times herein mentioned, the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, employed the defendant Officer, **KYLE REISS**, to work as a **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT** representative, officer and employee.

TWENTY-SIXTH: That at all times herein mentioned, the defendants **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, had the duty to maintain and ensure that the actions, acts, activities and behavior of its agents, employees and/or servants, including the defendant Officers herein, conform to a certain standard of conduct established by law for the protection of others, including the plaintiffs, against unreasonable risk of harm.

TWENTY-SEVENTH: That at all times herein mentioned, the defendants **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, had the duty to maintain and ensure that its agents, employees and/or servants, including the defendant Officer **KYLE REISS** herein, act in such a manner as to not intentionally, wantonly and/or negligently injure others, including the plaintiffs herein.

TWENTY-EIGHTH: That at all times herein mentioned, defendant OFFICER **KYLE REISS**, was an agent, servant representative and/or employee of the defendant, **THE CITY OF NEW YORK**.

TWENTY-NINTH: That at all times herein mentioned, defendant OFFICER **KYLE REISS**, was an agent, servant representative and/or employee of the defendants **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**.

THIRTIETH: That at all times herein mentioned, defendant OFFICER **KYLE REISS**, had the duty to maintain and ensure that his actions, acts, activities and

behavior conformed to a certain standard of conduct established by law for the protection of others, including the plaintiffs, against unreasonable risk of harm.

THIRTY-FIRST: That at all times herein mentioned, defendant OFFICER KYLE REISS, had the duty to conduct himself in such a manner so as not to intentionally, wantonly and/or negligently cause injury to others, including the plaintiffs herein.

THIRTY-SECOND: That at all times herein mentioned, defendant OFFICER KYLE REISS, had the duty to maintain and ensure that his actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the plaintiffs, against unreasonable risk of harm.

THIRTY-THIRD: That at all times herein mentioned, defendant OFFICER KYLE REISS, had the duty to conduct himself in such a manner so as not to intentionally, wantonly and/or negligently cause injury to others, including the plaintiffs herein.

THIRTY-FOURTH: Upon information and belief, that on February 28, 2019, at approximately 9:00 p.m., the plaintiff, JOHN MOHAMMED, was lawfully at the roadway, premises and location known as the FDR Drive, at or near 15th Street, New York County, City and State of New York, and more specifically, in a motor vehicle operated by Veronica Jagdeo at said location.

THIRTY-FIFTH: Upon information and belief, that at the aforesaid time and place, Officers of the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and specifically defendant OFFICER KYLE REISS, were present at the aforementioned location.

THIRTY-SIXTH: Upon information and belief, that at the aforesaid time and place, Police Officers of the defendants **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, and specifically defendant **OFFICER KYLE REISS**, were present at the aforementioned location in the scope and course of their employment as New York City Police Department Officers.

THIRTY-SEVENTH: Upon information and belief, at the aforesaid time and place, plaintiff **JOHN MOHAMMED** was shot at and was shot with a bullet from the gun of the aforementioned defendant Officer **KYLE REISS**, and was shot with a gun fired by defendant New York City Police Department Officer **KYLE REISS**, assaulted, falsely imprisoned and arrested by the aforementioned defendant officers, including defendant officer **KYLE REISS**.

THIRTY-EIGHTH: Upon information and belief, at the aforementioned time and place, plaintiff, **JOHN MOHAMMED**, was shot with a gun fired by defendant New York City Police Department Officer **KYLE REISS**, assaulted, threatened, battered, falsely arrested, falsely imprisoned, and threatened verbally and physically by the aforementioned defendant police officers, including defendant **OFFICER KYLE REISS**.

THIRTY-NINTH: Upon information and belief, at the aforementioned time and place, plaintiff, **JOHN MOHAMMED**, was wantonly, intentionally, maliciously, relentlessly, illegally and brutally shot with a gun fired by defendant New York City Police Department Officer **KYLE REISS**, assaulted, battered, struck, shot with a deadly weapon and threatened with a deadly weapon, falsely imprisoned and falsely arrested by the aforementioned defendant police officers, including defendant **OFFICER KYLE REISS**.

FORTIETH: Upon information and belief, the abuse to which plaintiff was subjected was consistent with an institutionalized practice of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, which was adopted and ratified by the aforementioned defendant Officers, the defendants having at no time taken any effective action to prevent the police personnel from continuing to engage in such misconduct.

FORTY-FIRST: Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior notice of the vicious propensities of the aforementioned defendant Officers, including defendant Police Officer KYLE REISS, but took no steps to train them, correct their abuse of authority, or to discourage their unlawful use of authority.

FORTY-SECOND: The failure of defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT to properly train the aforementioned defendant Officer defendants included the failure to instruct them in applicable provisions of the New York City and State Law Enforcement Law, and with proper and prudent use of force.

FORTY-THIRD: Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, tolerated as institutionalized practices, and ratified the misconduct hereinbefore detailed by failing to properly discipline, restrict, and control employees, including the aforementioned defendant Officer Kyle Reiss; by failing to take adequate precautions in the hiring, promotion, and retention of an Officer, including specifically the aforementioned defendant Officer Kyle Reiss; by failing to establish and/or assure the functioning of a bona fide and meaningful departmental system for dealing with complaints of Officer misconduct, but

instead responding to such complaints with bureaucratic power and official denials calculated to mislead the public. This conduct also constitutes gross negligence under state law.

FORTY-FOURTH: That by reason of the foregoing, the plaintiff, **JOHN MOHAMMED**, was injured.

FORTY-FIFTH: That the foregoing occurrences and the resulting injuries to the plaintiff were caused solely by the carelessness, recklessness, negligence, intentional infliction of emotional distress, abuse of process, excessive use of force, brutal use of force, wrongful assault and battery done by the defendants, their agents, servants and/or employees, including the defendant Officers named herein, Officer **KYLE REISS**, in violation of the plaintiffs' Civil and Constitutional rights, and without any cause, negligence or provocation on the part of the plaintiff herein

FORTY-SIXTH: That by reason of the foregoing, the plaintiff was rendered sick, sore, lame, disabled, suffering emotional shock and mental anguish, and his injuries caused great physical pain and emotional pain, some of which are permanent in nature, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of said injuries; and plaintiff has and will incur further expenses to care for said injuries and have and will in the future suffer loss of time and earnings from employment, and plaintiff will be unable to perform his usual daily and customary activities as he did prior, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

FORTY-SEVENTH: As a consequence of the abuse of authority detailed above, plaintiff sustained the damages hereinbefore alleged, and hereby makes claims for punitive damages for the acts complained of herein.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN MOHAMMED:
RESPONDEAT SUPERIOR**

FORTY-EIGHTH: Plaintiff repeats, reiterates, and realleges each and every allegation as set forth in paragraphs numbered "FIRST" through "FORTY-SEVENTH" with the same force and effect as if fully set forth herein.

FORTY-NINTH: On or about February 28, 2019, plaintiff was the victim of the tortious conduct perpetrated by Defendant officers, including defendant OFFICER KYLE REISS, whose tortious conduct consisted of assault, battery, intentional infliction of emotional distress, negligence, violating the plaintiff's civil rights, slander, excessive force, false arrest and imprisonment, negligent and improper discharge of a weapon, malicious prosecution, failing to provide reasonable and adequate medical care and acting with deliberate indifference to plaintiff's needs, and in otherwise carelessly and improperly exercising their authority and power.

FIFTIETH: At the aforesaid time and place, and at all times pertinent to this action, the aforementioned defendant Officer KYLE REISS committed the aforementioned tortious conduct that injured the plaintiff, as agents, servants, officers, and/or employees of the defendants, including the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

FIFTY-FIRST: As a result of the aforementioned tortious conduct perpetrated by said defendants, their agents, servants, officers, and/or employees, plaintiff suffered

personal injuries, embarrassment, loss of self-esteem in his community, inconvenience, mental anguish, humiliation, damages, and losses, both physical and psychological, all in a sum which exceeds the jurisdictional limits of all lower courts.

FIFTY-SECOND: At the time and place of the assault of the plaintiff by the employees of the defendants, as aforesaid, such employees were acting within the scope of their employment duties for their employer, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT. Such tortious conduct thereby committed by defendants was egregious and oppressive and characterized by malice or wantonness justifying the imposition of punitive damages therefor.

FIFTY-THIRD: The imposition of punitive damages on defendants, their agents, servants, officers, and employees, for the egregious tortious conduct of defendants' employees, is justified on the grounds that defendants, their agents, servants, officers, and employees were reckless or wanton in retaining the employees who committed the torts after knowledge of the employees' proclivities to engage in such conduct.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF JOHN MOHAMMED:
NEGLIGENCE IN PERFORMANCE OF DUTIES**

FIFTY-FOURTH: Plaintiff repeats, reiterates, and realleges each and every allegation as set forth in paragraphs numbered "FIRST" through "FIFTY-THIRD" with the same force and effect as if fully set forth herein.

FIFTY-FIFTH: At the aforesaid time and place, plaintiff was the victim of negligence on the part of the defendants, their agents, servants, officers, and employees, which consisted of violating the plaintiffs' civil rights, assault, battery, slander, excessive

force, false arrest and imprisonment, malicious prosecution, negligent discharge of a weapon, failure to provide reasonable and adequate medical care and acting with deliberate indifference to the plaintiff, and in otherwise carelessly and improperly exercising its authority and power.

FIFTY-SIXTH: That the defendants, their agents, servants, officers, and employees negligently, carelessly, and recklessly performed their officer and police officer duties in that they failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that they carelessly, recklessly and without provocation negligently assaulted the plaintiff; negligently, carelessly and recklessly used the threat of physical injury to the plaintiff and actually caused physical injury upon the plaintiffs thereat; failed to provide adequate medical care after the plaintiffs requested such; negligently threatened the plaintiff; fired a gun at the plaintiff and actually shot the plaintiff with a bullet fired from defendant Police Officer KYLE REISS' gun; negligently fired a gun at and shot the plaintiff in violation of New York City Police Department guidelines, rules and regulations when said defendant Police Officer was not at risk of imminent or immediate harm; and in that the defendants, their agents, servant and employees were otherwise careless, reckless and negligent.

FIFTY-SEVENTH: As a direct and proximate cause of the negligence described above, plaintiff suffered personal injuries and damages, embarrassment, loss of self-esteem in his community, anxiety, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological, all in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

**ON BEHALF OF THE PLAINTIFF JOHN MOHAMMED:
NEGLIGENT HIRING**

FIFTY-EIGHTH: Plaintiff repeats, reiterates, and realleges each and every allegation as set forth in paragraphs numbered "ONE" through "FIFTY-SEVENTH" with the same force and effect as if fully set forth herein.

FIFTY-NINTH: On or before February 28, 2019, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, hired defendant officers, including defendant OFFICER KYLE REISS, as agents, servants, officers and/or employees.

SIXTIETH: Upon information and belief, the aforementioned defendant Officers continued to be employed by defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, through and including February 28, 2019, as agents, servants, officers and/or employees.

SIXTY-FIRST: On or about February 28, 2019, the aforementioned defendant Officers, including defendant OFFICER KYLE REISS, were incompetent and unfit to perform the work required in their capacity as agents, servants, officers and/or employees for the defendants.

SIXTY-SECOND: Upon information and belief, defendants knew or in the exercise of reasonable care, should have known that a person in plaintiff's position would be subjected to an unreasonable risk of harm from the aforementioned defendant, Officer Kyle Reiss, who was a New York City Police Department Officer.

SIXTY-THIRD: Upon information and belief, at all times hereinafter mentioned, the defendants breached the duty it owed to plaintiff to use reasonable care in hiring its employees by its failure to conduct a reasonable investigation into the backgrounds and

characters of the aforementioned defendant Officers prior to the time he was hired by the defendants.

SIXTY-FOURTH: Upon information and belief, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they hired the aforementioned defendant Officers, breached the duty it owed to plaintiff to use reasonable care in hiring its employees by hiring said Officers when defendants, prior to the time of such hiring, knew or should have known that the defendant Officers were incompetent or unfit for employment.

SIXTY-FIFTH: On or about February 28, 2019, the aforementioned defendant Officers assaulted and battered the plaintiff, intentionally inflicted emotional distress on plaintiff, violated the plaintiff's civil rights, fired its gun at plaintiff and actually shot the plaintiff with a gun fired by defendant New York City Police Department Officer KYLE REISS, slandered, falsely arrested and imprisoned, used excessive force on, failed to provide reasonable and adequate medical care, and otherwise carelessly and improperly exercised their authority and power as against the plaintiff.

SIXTY-SIXTH: As a direct and proximate result of defendants' breach of duty in hiring the aforementioned defendant Officer, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and has expended and incurred diverse sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation felt by him due to the actions of the defendants, their agents, servants, and employees, including counsel fees and disbursements and, upon information and belief, will expend further sums in that

direction, and the plaintiff has been otherwise damaged, all in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF JOHN MOHAMMED:
NEGLIGENT TRAINING AND SUPERVISION**

SIXTY-SEVENTH: Plaintiff repeats, reiterates, and realleges each and every allegation as set forth in paragraphs numbered "ONE" through "SIXTY-SIXTH" with the same force and effect as if fully set forth herein.

SIXTY-EIGHTH: That the defendants, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular, the named defendants, in that they failed to train their employees in the proper way to maintain order; when it is appropriate to fire their gun; to control their tempers and exercise the proper demeanor and temperament; and to otherwise act as reasonable, prudent corrections officers; failed to give them proper instruction as to their demeanor, behavior and conduct as representatives of their employer; and, in that the defendants, their agents, servants, and employees were otherwise reckless, careless and negligent.

SIXTY-NINTH: That the aforesaid occurrence and the resulting injuries to plaintiff's mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

SEVENTIETH: That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so

remains, and has expended and incurred diverse sums of money in an effort to cure himself of said injuries, to extricate himself from the indignities and humiliation felt by him due to the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that direction, and the plaintiff has been otherwise damaged, all in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF JOHN MOHAMMED:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

SEVENTY-FIRST: Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered "FIRST" through "SEVENTIETH" with the same force and effect as if fully set forth herein.

SEVENTY-SECOND: The acts of defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, their agents, servants, officers and/or employees, more specifically the aforementioned defendant Officers including defendant **OFFICER KYLE REISS**, described herein were done willfully, maliciously, outrageously, deliberately, and purposely with the intention to inflict emotional distress upon plaintiff and/or were done in reckless disregard of the probability of causing plaintiff emotional distress, and these acts did in fact result in severe and extreme emotional distress.

SEVENTY-THIRD: As a direct and proximate result of the acts mentioned above, plaintiff was caused to incur severe and grievous mental and emotional suffering, fright, anguish, shock, nervousness, anxiety, and feelings of vulnerability. Plaintiff continues to be fearful, anxious, and nervous, for which he was required to seek and receive medical

treatment, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF JOHN MOHAMMED:
ASSAULT AND BATTERY**

SEVENTY-FOURTH: Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered "FIRST" through "SEVENTY-THIRD" with the same force and effect as if fully set forth herein.

SEVENTY-FIFTH: Upon information and belief, that on or about February 28, 2019, the aforementioned defendant officers, including defendant OFFICER KYLE REISS, violently assaulted the plaintiff by firing his gun at and actually shooting plaintiff with a bullet fired from his gun when the circumstances did not require or necessitate the firing of his weapon, and by verbally and physically threatening the plaintiff and assaulting the plaintiff.

SEVENTY-SIXTH: That the aforementioned defendant Officers, acting as agents and on behalf of defendants and within the scope of their employment, intentionally, willfully and maliciously assaulted the plaintiff, JOHN MOHAMMED, in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that act caused apprehension of such contact in the plaintiff, and defendants, in a hostile and/or offensive manner assaulted the plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused the plaintiff to be in fear of immediate death and/or bodily harm, and did in fact make contact with the plaintiff, fired his gun at the plaintiff and shot the plaintiff with a gun

fired by defendant New York City Police Department Officer KYLE REISS; and caused plaintiff bodily harm.

SEVENTY-SEVENTH: The defendants' actions were willful, intentional and unwarranted, without any just cause of provocations.

SEVENTY-EIGHTH: That as a result, plaintiff, JOHN MOHAMMED, has been damaged in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN MOHAMMED:
FALSE ARREST AND FALSE IMPRISONMENT**

SEVENTY-NINTH: Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered "FIRST" through "SEVENTY-EIGHTH," with the same force and effect as if fully set forth herein.

EIGHTIETH: That at all times hereinafter mentioned, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, owned, maintained and controlled the various courthouses, jails, police officers and their equipment, police stations, all of which are mentioned in this Complaint.

EIGHTY-FIRST: That on or about February 28, 2019, the plaintiff was illegally and falsely arrested and falsely imprisoned, without authority of law and without probable cause, and was imprisoned on or about February 28, 2019 by being placed in handcuffs and detained by the aforementioned defendant officers, including defendant OFFICER KYLE REISS, who was acting as the agent, servant and/or employee of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

EIGHTY-SECOND: That as a result of the defendants' aforementioned false arrest and false imprisonment of plaintiff, said plaintiff has suffered severe personal injuries, embarrassment, loss of self-esteem in his community, inconvenience, mental anguish, humiliation, damages, and losses, both physical and psychological, all in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN MOHAMMED:
EXCESSIVE FORCE**

EIGHTY-THIRD: Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered "FIRST" through "EIGHTY-SECOND" with the same force and effect as if fully set forth herein.

EIGHTY-FOURTH: Plaintiff alleges that the assault and battery by the defendants, and the shooting of the plaintiff by a gun fired by defendant New York City Police Department Officer KYLE REISS, their agents, servants, officers, and/or employees, with the use of excessive force was in violation of his federal and state constitutional and civil rights, as said defendants acted with deliberate indifference to the plaintiff's civil and constitutional rights.

EIGHTY-FIFTH: The defendants, their, agents, servants, officers, and/or employees acted under color of the authority of law as Police Officers for THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

EIGHTY-SIXTH: Plaintiff alleges that the force used by the defendants and the shooting of plaintiff by the defendant OFFICER KYLE REISS, their agents, servants,

officers, and employees, was unreasonable in light of the circumstances of the assault, firing of the weapon and false imprisonment and thereby violated the rights of the plaintiff under the First, Fourth, Fifth, Eighth and Fourteenth Amendment right to be free from such treatment.

EIGHTY-SEVENTH: Plaintiff alleges that the force used by the defendants, their agents, servants, officers, and employees was unreasonable in light of the circumstances of the assault and thereby violated the rights of the plaintiff under New York Civil Rights Law §40-c.

EIGHTY-EIGHTH: The assault and battery, shooting plaintiff with a gun fired by defendant New York City Police Department Officer KYLE REISS, and false arrest and false imprisonment of the plaintiff was unconstitutional as the defendants did not have to injure the plaintiff in such a manner as plaintiff was not a threat to their well-being. The assault and battery, excessive force and false imprisonment, and shooting of plaintiff with a gun fired by defendant New York City Police Department Officer KYLE REISS committed by the defendants was not done in a good faith effort to maintain or restore order, but rather was done maliciously and sadistically to cause harm.

EIGHTY-NINTH: The conduct aforementioned committed by the defendants, their agents, servants, officers, and/or employees, was excessive, unnecessary, unwarranted, unjustified, without cause, willful, wanton, malicious, intentional, and with clear intent to deprive the plaintiff of his rights, privileges, and immunities secured to him under the Constitution of the United States of America and of the City and State of New York, Acts of the Congress of the United States of America, which provide for the equal rights of citizens of the United States, and which rights, privileges and immunities are guaranteed by the

Due Process Clauses of the Constitution of the United States of America and Title 42, United States Code, Section 1983 justifying the imposition of punitive damages therefor.

NINETIETH: The defendants, their agents, servants and employees severely assaulted and battered, shot plaintiff with a gun fired by defendant New York City Police Department Officer KYLE REISS and falsely arrested and imprisoned the plaintiff and deprived him of his rights and liberties as set forth in the Constitution of the United States and of the City and State of New York, in that they continued to assault and batter and falsely imprison the plaintiff and shoot plaintiff with a gun fired by defendant New York City Police Department Officer KYLE REISS without any conduct on the part of the plaintiff to so warrant; to wit; in that all of the actions of the defendants, their agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiff; in that the defendants, their agents, servants and employees caused an assault and battery when they in a hostile and/or offensive manner threatened and caused serious injury to the plaintiff and shot plaintiff with a gun fired by defendant New York City Police Department Officer KYLE REISS without plaintiff's consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff, all without warrant, probable cause or any lawful cause whatever; in that the defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and employees and in their hiring practices in the exercise of their police officer function and their failure to enforce the laws of the State of New York and the United States is evidence of the reckless lack of cautious regard for the rights of citizens of the State of New York and the United States including plaintiff and exhibited a lack of

that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants; in the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions and their failure to enforce the laws of the State of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the dangers of harm and injury to the citizens of the State of New York including plaintiff; in that the acts of the defendants, their agents, servants and employees herein, the failure of the defendants to discipline and properly hire the defendants and the continued employment of the defendants present a clear and present danger to the citizens of the City and State of New York; in that the defendants, their agents, servants and employees permitted the use of policy and/or drafted policy that violated the constitutional rights of the plaintiffs; in that each and all of the acts of the defendants, their agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, and under the authority of their office as police officers for said City and State, and for the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

NINETY-FIRST: Upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and the herein individually named officers who are agents, servants, and employees of defendants, including the aforementioned police officers and defendant OFFICER KYLE REISS, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of assault, battery, libel, excessive force, slander, negligence, negligent

discharge of their weapon, negligent shooting of the plaintiff with a gun fired by defendant New York City Police Department Officer KYLE REISS, false arrest and false imprisonment, failure to provide reasonable and adequate medical care, assault and intentional infliction of emotional distress in denial of rights, privileges and immunities guaranteed plaintiff, JOHN MOHAMMED, and other citizens by the Constitution of the United States and the State of New York.

NINETY-SECOND: Upon information and belief, this systematic pattern of conduct consists of a large number of individual acts of violence and intimidation visited on plaintiff, JOHN MOHAMMED, and other citizens of the County of New York, City of New York and State of New York, acting in concert with persons unknown to plaintiff and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

NINETY-THIRD: Upon information and belief, although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and employees, the defendants have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take the proper disciplinary action against any of their employees or agents.

NINETY-FOURTH: The unlawful and illegal conduct of the defendants, their agents, servants, and employees and each of them, deprived plaintiff of the rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York, more specifically thereat, the liberty interest in being free from bodily injury.

NINETY-FIFTH: The conduct aforementioned committed by the defendants, their agents, servants, officers, and/or employees, is of the type that shocks the conscience and entitles plaintiff to an award of punitive damages.

NINETY-SIXTH: As a direct and proximate cause of the aforementioned actions, plaintiff has suffered severe personal injuries, embarrassment, loss of self-esteem in his community, inconvenience, mental anguish, humiliation, damages, and losses, both physical and psychological.

NINETY-SEVENTH: Pursuant to 42 U.S.C. section 1983, plaintiff seeks an award of attorney fees and costs incurred in bringing this action.

NINETY-EIGHTH: That by reason of the aforesaid, the plaintiff requests the following relief:

- A) Compensatory damages for pain and suffering in a sum which exceeds the jurisdictional limits of all lower courts;**
- B) Punitive damages in a sum which exceeds the jurisdictional limits of all lower courts;**
- C) An award of reasonable attorney's fees, costs and disbursements;**

**AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF JOHN MOHAMMED: UNINTENTIONAL RESULT OF
INTENTIONAL ACT**

NINETY-NINTH: Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered "FIRST" through "NINETY-EIGHTH" with the same force and effect as if fully set forth herein.

ONE HUNDRED: That the damages sustained by the plaintiff was the unintentional result of the intentional acts of the defendants discussed herein, including but not limited to defendant OFFICER KYLE REISS.

ONE HUNDRED AND FIRST: That by reason of the aforesaid, the plaintiff was rendered sick, sore, lame, and disabled, and his injuries, upon information and belief, are of a permanent character. That by reason thereof, he has been obliged to incur expense and obligations for medicines, medical care, attention and treatment and he is informed and verily believes that he will in the future be obliged to incur further expense and obligations for medicines, medical care, attention and treatment and continue to have pain and suffering and be unable to follow his current vocation, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, the plaintiff demands judgment against the defendants on the First cause of action in a sum which exceeds the jurisdictional limits of all lower Courts, and for punitive damages; on the Second cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Third cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Fourth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Fifth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Sixth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Seventh cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Eighth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; on the Ninth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts

and punitive damages in an amount which exceeds the jurisdictional limits of all lower Courts, as well as attorney's fees in a sum within the jurisdictional limits of this Court; and on the Tenth cause of action in a sum which exceeds the jurisdictional limits of all lower Courts; and for such other, further, and different relief as to this Court may seem just and proper.

**Dated: Mineola, New York
February 17, 2020**

Respectfully Submitted,

**SANDERS, SANDERS, BLOCK, WOYCIK,
VIENER & GROSSMAN, P.C.
Attorneys for Plaintiff
JOHN MOHAMMED**



**MICHAEL VILLECK
100 Herricks Road
Mineola, New York 11501
(516) 741-5252**

ATTORNEY'S VERIFICATION

MICHAEL VILLECK, an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **SANDERS, SANDERS, BLOCK, WOYCIK, VIENER & GROSSMAN, P. C.**, attorneys of record for Plaintiff, JOHN MOHAMMED. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the County wherein I maintain my offices.

Dated: Mineola, New York
February 17, 2020



MICHAEL VILLECK

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF

JOHN MOHAMMED,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and NEW
YORK CITY POLICE OFFICER KYLE REISS, Individually and as a New York City Police
Officer,

SUMMONS AND VERIFIED COMPLAINT

**SANDERS, SANDERS, BLOCK, WOYCIK, VIENER & GROSSMAN,
P.C.**

Attorneys for Plaintiff
Office and Post Office Address, Telephone
100 Herricks Road
Mineola, New York 11501
Bus. (516) 741-5252
Fax (516) 741-0799

TO:

PLEASE TAKE NOTICE

NOTICE OF ENTRY that the within is a (*certified*) true copy of a
duly entered in the office of the clerk of the within named court on
that an Order of which the within is a true copy will be
presented for settlement to the Hon.
one of the judges of the within named court, at on
NOTICE OF at a.m.
SETTLEMENT

ATTORNEY CERTIFICATION PURSUANT TO 22 NYCRR 130-1.1A

Pursuant to 22 NYCRR 130-1.1a, the undersigned, an attorney admitted to practice in the courts
of New York State, certified that, upon information and belief, and after reasonable inquiry, the
contentions contained in the annexed documents are not frivolous.

Dated:

Yours, etc.,

**SANDERS, SANDERS, BLOCK, WOYCIK, VIENER &
GROSSMAN, P.C.**
Attorneys for Plaintiff
Office and Post Office Address, Telephone
100 Herricks Road
Mineola, New York 11501
(516) 741-5252